Secretaries when the demands upon his time do not permit personal attention. The assignments made in this section shall in no way impair the responsibilities and review functions of the several policy, legal, or administrative offices of the Department.

§ 4.2 *Departmental mail.* All mail and papers requiring action at the Secretarial level will be set up for signature by "Secretary of the Interior" (and placed on the appropriate letterhead under existing orders, using "Office of the Secretary" in case of doubt). The Secretary's Mail Center will distribute papers and mail in accordance with the assignments made in §4.1, unless instructions to the contrary are issued by a member of the Secretariat.

§ 4.3 *Succession of authority.* The officers of the Department who are authorized to perform the duties of the Secretary of the Interior in case of the death, resignation, absence, or sickness of the Secretary are designated by the President in Executive Order No. 9866 (June 14, 1947; 12 F. R. 3909).

(R. S. 161, secs. 3, 12, Pub. Law, 404, 79th Cong., 60 Stat. 238, 244; 5 U. S. C. 22)

J. A. KRUG,
Secretary of the Interior.

JULY 3, 1947.

[F. R. Doc. 47-6445; Filed, July 10, 1947; 8:47 a. m.]

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 377]

ALASKA

EXCLUDING A TRACT OF LAND FROM THE TONGASS NATIONAL FOREST AND RESTORING IT TO ENTRY

By virtue of the authority vested in the President by the act of June 4, 1897, 30 Stat. 11, 36 (U. S. C. Title 16, sec. 473), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

The following-described tract of public land in Alaska, occupied as a resort site, and identified by a survey of which the plat and field notes are on file in the Bureau of Land Management, Washington, D. C., is hereby excluded from the Tongass National Forest as hereinafter indicated, and restored, subject to valid existing rights, to application and sale under the trade and manufacturing site act of May 14, 1898, 30 Stat. 413, as amended (U. S. C. Title 48, sec. 461):

TONGASS NATIONAL FOREST

U. S. Survey No. 2403, Lot 93, Herring Bay, 2.14 acres; latitude 55°19'20" N., longitude 131°30'00" W.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

JULY 1, 1947.

[F. R. Doc. 47-6439; Filed, July 10, 1947; 8:46 a. m.]

[Public Land Order 378]

NEW MEXICO

REVOCATION OF EXECUTIVE ORDER NO. 6086 OF MARCH 28, 1933

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 6086 of March 28, 1933, establishing the Rio Grande Wildlife Refuge within Socorro and Sierra Counties, New Mexico, is hereby revoked.

Part of the land released by this order is covered by first form reclamation withdrawal and some of it has been patented. Information as to the status of any particular tract will be furnished on request, by the District Land Office at Las Cruces, New Mexico, where applications for any land subject to disposal shall be filed.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on September 2, 1947. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from September 2, 1947 to December 2, 1947, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. sec. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. secs. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from August 12, 1947, to September 2, 1947, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on September 2, 1947, shall be treated as simultaneously filed.

(c) *Date for non-preference right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on December 2, 1947, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference right filings.* Applications by the general public may be presented during the 20-day period from November 11, 1947, to December 2, 1947, inclusive, and all such applications, together with those presented at 10:00 a. m. on December 2, 1947, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Available information indicates that the lands embraced in the Rio Grande Wildlife Refuge are generally rough in character, being largely canyon walls, but having some areas of fairly level and marsh lands in the floor of the canyon.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

JULY 1, 1947.

[F. R. Doc. 47-6440; Filed, July 10, 1947; 8:46 a. m.]

[Public Land Order 379]

ILLINOIS, IOWA, MINNESOTA, MISSOURI, AND WISCONSIN

RESERVING LANDS FOR USE OF DEPARTMENT OF INTERIOR AS WILDLIFE REFUGE AND MANAGEMENT AREAS

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, and in furtherance of the purposes of and in accordance with the act of March 10, 1934, 48 Stat. 401 (U. S. C. Title 16, secs. 661–666), as amended by the act of August 14, 1946 (60 Stat. 1080), it is ordered as follows:

Subject to valid existing rights, the following-described lands in Illinois, Iowa, Minnesota, Missouri, and Wisconsin, are hereby reserved and set apart for the use of the Department of the Interior as wildlife refuge and management areas:

LOCK AND DAM NO. 9

IOWA, ALLAMAKEE COUNTY, FIFTH PRINCIPAL MERIDIAN

Township 97 North, Range 2 West

Section 5: That portion of the west 25 acres of the NE¼NW¼ lying east of the easterly right of way line of the Chicago, Milwaukee, St. Paul and Pacific Railroad as now laid out across said NE¼NW¼.

Section 9: All of Government Lots 1, 2, 3, and 4.

Section 10: All of Government Lot 2.

Section 16: All of Government Lot 1.

Section 17: All of Government Lot 2. That portion of Government Lots 3 and 4 described

as follows: beginning at a point on the west bank of St. Paul Slough 264.0 feet south of the northeast corner of said Lot 3, thence west along a line 412.5 feet, thence north 7 degrees 00 minute east, 1485.0 feet, thence east along a line 412.5 feet, more or less, to the west bank of St. Paul Slough, thence in a southwesterly direction along said west bank of St. Paul Slough to point of beginning.

Township 98 North, Range 2 West

Section 33: All of Government Lot 8.
Section 34: All of Government Lot 3.

Township 99 North, Range 3 West

Section 4: All of Government Lots 1, 2, 3, 4, and 5. SW¼NW¼.
Section 5: All of Government Lots 1, 2, 3, 4, and 5.
Section 6: All of Government Lots 11 and 13.
Section 7: All of Government Lots 1, 4, 5, 6, and 11.
Section 8: All of Government Lots 1, 2, 3, 4, 5, 6, and 7. All of an unsurveyed island located in "Big Lake," so called.
Section 9: All of fractional section.
Section 16: All of Government Lots 1, 2, 5, and 6.
Section 17: All of Government Lots 1, 2, 3, 4, 5, 6, and 8.
Section 18: That portion of Government Lot 1 described as follows: beginning at the northeast corner of said Lot 1, thence in a southeasterly direction along a straight line along the shore line of Big Slough, running through said Lot 1, 528.0 feet, thence west along a line parallel to the north line of said Lot 1, 280.5 feet, thence northwesterly along a line 528.0 feet, more or less, to a point on the north line of said Lot 1, 280.5 feet west of the point of beginning, thence east along the north line of said Lot 1, 280.5 feet to the point of beginning.
Section 20: All of Government Lots 1 and 2.

Township 99 North, Range 4 West

Section 1: All of Government Lot 1.
Section 12: All of Government Lot 1.

Township 100 North, Range 3 West

Section 17: All of Government Lots 4, 7, 8, 9, and 10.
Section 18: All of Government Lot 5.
Section 19: All of Government Lot 5.
Section 20: All of Government Lot 1.
Section 29: All of fractional section.
Section 30: All of Government Lots 1, 2, 4, 5, 6, 8, and 9; S½SE¼, NW¼SE¼, SW¼NE¼, NE¼SW¼.
Section 31: All of Government Lots, 4, 5, 6, 7, 8, 9, 10, 11, and 12; N½NE¼, NE¼NW¼.
Section 32: All of Government Lots 1, 2, 3, and 4; SW¼SE¼; SE¼SW¼; E½SW¼SW¼.
Section 33: All of fractional section.

Township 100 North, Range 4 West

Section 24: All of Government Lot 2.
Section 25: All of Government Lot 1.
Section 36: All of Government Lots 2, 8, 4, 5, 6, and 7; NW¼NE¼.

MINNESOTA, HOUSTON COUNTY, FIFTH PRINCIPAL MERIDIAN

Township 101 North, Range 3 West

Section 18: W½NW¼ and the NW¼SW¼.

Township 101 North, Range 4 West

Section 13: SE¼NE¼, NE¼SE¼ excepting the east 33.0 feet thereof, and S½SE¼.
Section 24: E½, S½NW¼, N½SW¼, and SE¼SW¼.

WISCONSIN, CRAWFORD COUNTY, FOURTH PRINCIPAL MERIDIAN

Township 9 North, Range 6 West

Section 2: That portion of Government Lots 2 and 3 lying west of the westerly right of way line of the Chicago, Burlington and Quincy Railroad as now laid out across said Lots 2 and 3. All of Government Lot 9.

Section 3: That portion of Government Lot 7 described as follows: Beginning at corner 1, on the bank and water's edge of the Mississippi River, a point a 4" x 4" x 48" post on high bank in a mound of stones bears north 72 degrees east, 9.9 feet distant, faced and scribed K1. Navigation Day Mark No. 773 on the Iowa shore of the Mississippi River bears south 6 degrees 15 minutes west; thence north 72 degrees east, 198.0 feet to corner 2, a 4" x 4" x 48" maple post marked K2. A 10-inch maple blazed and scribed B. T. bears north 50 degrees east 33 feet distant, thence south 18 degrees east, 440.22 feet to corner 3 in a marsh, a point no witness trees available, thence south 72 degrees west 198.0 feet to corner 4 on the bank and the water's edge of the Mississippi River. A point a 4" x 4" x 48" post set in a mound of stone bears north 72 degrees east. 9.9 feet distant, faced and scribed K4. From this post a 10-inch blazed willow north 792.0 feet distant, thence north 18 degrees west along shore line of the Mississippi River 440.22 feet to the place of beginning.

Section 23: That portion of Government Lot 2 described as follows: beginning at the point of intersection of the south line of said Lot 2, with the original westerly right of way line of the Chicago, Burlington and Quincy Railroad, thence west along the south line of said Lot 2, 140.0 feet, to a point 100.0 feet, more or less, from and at right angles to the center line of the new west-bound main track of the said railroad company, thence north 50 degrees 40 minutes east, more or less, 820.0 feet; thence easterly at right angles to last-described course 36.0 feet to a point in said original westerly right of way line, thence southwesterly 740.0 feet, more or less, measured along said westerly right of way line to the place of beginning. That portion of Government Lot 3 lying east of a line 100.0 feet radially distant from, parallel to and southeasterly of the present easterly main track of the Chicago, Burlington and Quincy Railroad and west of a line described as follows: beginning at a point on the west line of said Lot 3, 799.0 feet north of the southwest corner thereof, thence north 44 degrees 44 minutes east, 729.5 feet, more or less, to a point on the north line of said Lot 3, 865.0 feet west of the northeast corner thereof.

Township 10 North, Range 6 West

Section 6: That portion of the NW¼SW¼ lying southwesterly of a line described as follows: beginning at a point on the south line of the NW¼SW¼, 780.0 feet west of the southeast corner thereof, thence north 65 degrees 56 minutes west, 275.4 feet, more or less, to a point on the west line of said NW¼SW¼, 1200.0 feet south of the northwest corner thereof. That portion of the SW¼SW¼ described as follows: beginning at the northwest corner of the SW¼SW¼, thence east along the north line of said SW¼SW¼ to a point 780.0 feet west of the northeast corner thereof, thence south 61 degrees 19 minutes east, 314.9 feet, thence south 47 degrees 17 minutes east 176.8 feet, thence south 14 degrees 28 minutes east 294.1 feet, more or less, to the intersection with the northerly right of way line of the Chicago, Burlington and Quincy Railroad as now laid out across said SW¼SW¼, thence northwesterly along said northerly right of way line to the intersection with the west line of said SW¼SW¼, thence north along the west line of said SW¼SW¼, 315.0 feet, more or less, to the point of beginning.

Section 15: That portion of the SW¼SW¼ lying southwesterly of the southwesterly right of way line of the Chicago, Burlington and Quincy Railroad as now laid out across said SW¼SW¼.

Section 19: All of Government Lots 5, 6, and 7.

Section 21: All of Government Lot 1.

Section 22: That portion of Government Lots 1, 2, 3, and 4, and NE¼NW¼, and SW¼NE¼ lying southwesterly of the southwesterly right of way line of the Chicago, Burlington and Quincy Railroad as now laid out across said Section 22.

Section 26: That portion of the NW¼NW¼ lying southwesterly of the southwesterly right of way line of the Chicago, Burlington and Quincy Railroad as now laid out across said NW¼NW¼.

Section 27: That portion of Government Lot 1 lying southerly and westerly of the westerly right of way line of the Chicago, Burlington and Quincy Railroad as now laid out across said Government Lot 1.

Section 35: That portion of Government Lots 2, 3, and 4 lying west of the westerly right of way line of the Chicago, Burlington and Quincy Railroad as now laid out across said Section 35.

Township 10 North, Range 7 West

Section 1: All that portion of the W½NW¼ lying south of the southwesterly right of way line of the Chicago, Burlington and Quincy Railroad as now laid out excepting therefrom that portion described as follows: beginning at a point on the southwesterly right of way line of said railroad 130.0 feet southeasterly from the intersection of said southwesterly right of way line and the north line of the SW¼NW¼, southwesterly at right angles to said right of way line 150.0 feet, thence southeasterly at right angles to last-described course 770.0 feet, thence northeasterly at right angles to last-described course 150.0 feet, to a point in the said southwesterly right of way line, thence northwesterly along said southwesterly right of way line to place of beginning.

That portion of the NW¼SE¼ lying south of the southerly right of way line of the Chicago, Burlington and Quincy Railroad as now laid out across said NW¼SE¼.

Section 14: All of Government Lot 9.

Township 11 North, Range 7 West

Section 26: All of Government Lot 3.

Section 27: All of Government Lots 4 and 5.

Section 34: All of Government Lots 2, 3, and 4. All of the SE¼ excepting therefrom the Iowa-Wisconsin Bridge Company Road as now laid out across said SE¼.

Section 35: All of Government Lots 3 and 4 excepting therefrom that portion lying northeasterly of the southwesterly right of way line of the Chicago, Burlington and Quincy Railroad as now laid out across said Government Lots 3 and 4. All of Government Lots 5 and 7 excepting theerfrom the Iowa-Wisconsin Bridge Company road as now laid out across said Government Lots 5 and 7.

Section 36: That portion of the SW¼SW¼ lying southwesterly of the southwesterly right of way line of the Chicago, Burlington and Quincy Railroad as now laid out across said SW¼SW¼.

WISCONSIN, VERNON COUNTY, FOURTH PRINCIPAL MERIDIAN

Township 12 North, Range 7 West

Section 16: That portion lying west of the westerly right of way line of the Chicago, Burlington and Quincy Railroad as now laid out across said section and southerly of the Bad Axe River passing through said section.

LOCK AND DAM NO. 11

WISCONSIN, GRANT COUNTY, FOURTH PRINCIPAL MERIDIAN

Township 1 North, Range 2 West

Fractional section 7: All that part lying southwesterly of the Chicago, Burlington and Quincy Railroad Company's right of way.